

Louisiana

GENERAL INFORMATION

1. Louisiana **maintains** a list of eligible surplus lines insurers (see Other Comments section #1).
2. Louisiana **does have** a Surplus Lines Association for brokers only but does not have a Stamping Office.
(see Other Comments section #5).
3. Louisiana **does not** have an Export List.
4. Louisiana **does** have an industrial insured exemption with respect to workers' compensation insurance only
(see Appendix C) and also recognizes the exempt commercial purchaser exemption as of 7/21/2011,
although it is not codified.
5. **Surplus lines tax:** 4.85%, payable by producer. Producers are required to separately itemize the tax on the
declaration page of the policy, La. Rev. Stat. Ann. § 22:855.
6. Louisiana **does** allow domestic surplus lines insurers in the state (see Other Comments section #9).

ELIGIBILITY AND FILING REQUIREMENTS (ALL INSURERS)

1. **Examination Fee:** \$1,050 due March 1.
2. **Annual Statement/Report:** due April 15.
3. **Application.**
4. **Interrogatories.**
5. **Premium report.**

ELIGIBILITY AND FILING REQUIREMENTS (ALIEN INSURERS ONLY)

1. **NAIC Reporting Format:** due July 31.
2. **Statement of Total Premiums Written in Louisiana:** due April 15.
3. **Trust Fund:** Not less than the greater of \$5,400,000 or 30% of the company's U.S. surplus liabilities,
excluding liabilities from exempt business, not to exceed \$60,000,000 (see Other Comments section #4).
4. **Statement of Assets in Trust.**
5. **Capital and Surplus:** follows NAIC requirements (see Appendix E).
6. **NAIC Listing.**

ELIGIBILITY AND FILING REQUIREMENTS (FOREIGN INSURERS ONLY)

1. **Capital and Surplus:** equal to or greater than \$15,000,000.
2. Authorized to write in its home jurisdiction.

TYPES OF INSURANCE EXEMPTED FROM SURPLUS LINES REGULATION

1. Insurance on property and operation of railroads or aircrafts engaged in interstate or foreign commerce.
2. Insurance on vessels, crafts, hulls, cargoes, marine builders' risks, marine protection and indemnity, or other risks, including strikes and war risks commonly insured under ocean or wet marine forms of policy (see Other Comments sections # 2 and #3).
3. Transactions involving risks located in Louisiana where the policy or contract of insurance for such risk was principally negotiated and delivered outside Louisiana, and was lawfully issued in a state or foreign country in which the foreign or alien insurer was authorized to operate an insurance business, and where such insurer has no contact with Louisiana except in connection with inspections or losses required by virtue of the contract or policy of insurance covering the risk located in Louisiana, including transactions involving the operation of workers' compensation claims offices.

OTHER COMMENTS OR REQUIREMENTS

1. Louisiana's eligibility list is available at: <https://www.lidi.la.gov/online services/WhiteList/>.
2. The definition of marine insurance does not include vessels and watercraft under five tons of gross weight.
3. Coverage for any wet marine risk arising out of the exploration, discovery, development, or production for any mineral, the maintenance, shutting in, or the plugging and abandoning of any oil or natural gas or other marine mine, may only be placed with an insurer appearing on the Louisiana Surplus Lines Eligibility List.
4. Louisiana deems compliance with the IID Plan of Operation Standard form trust requirement to be in compliance with Louisiana Law.
5. The Louisiana Surplus Lines Association webpage is <https://lasurpluslines.com/>.
6. The Louisiana Legislature enacted legislation which authorizes the placement of surplus lines insurance without regard to the availability of coverage from authorized (admitted) insurers. The bill also clarifies that inclusion on the Louisiana list of unauthorized insurers shall be prima facie evidence that an unauthorized insurer meets the financial and eligibility criteria for surplus lines insurance.
7. A. Each surplus lines insurance policy or contract procured and delivered pursuant to the Louisiana Insurance Code shall have the following notice:

“NOTICE

This insurance policy is delivered as surplus line coverage under the Louisiana Insurance Code.

In the event of insolvency of the company issuing this contract, the policyholder or claimant is not covered by the Louisiana Insurance Guaranty Association or the Louisiana Life and Health Insurance Guaranty Association, which guarantees only specific types of policies issued by insurance companies authorized to do business in Louisiana.

This surplus lines policy has been procured by the following licensed Louisiana surplus lines broker:

Signature of Licensed Louisiana Surplus Lines Broker or Authorized Representative

Printed Name of Licensed Louisiana Surplus Lines Broker”

B. The notice required pursuant to Subsection A of this Section shall be:

- (1) Prominently displayed in the color red or prominently offset by a black border.
- (2) Printed or stamped on the policy or contract in bold and in not less than ten-point type.
- (3) Signed by the surplus lines broker who procured the policy or contract.

- 8. Louisiana recognizes two categories of purchasers that are exempt from the tax on surplus lines insurance. The first category is “any college, university, school, institution, or program that is under the supervision or management of a system board of supervisors provided for in [La.] R.S. 17:3215 through 3217.1.” The boards referred to are those for Louisiana State University, Southern University, University of Louisiana, and the Louisiana Community and Technical College. The second category is any political subdivision “having a population of not less than three hundred fifty thousand persons according to the latest federal decennial census.” Any purchaser of insurance claiming the political subdivision exemption must provide legal authority to the surplus lines broker to substantiate the purchaser’s legal status as a political subdivision.
- 9. As Louisiana permits domestic surplus lines insurers in the state, references to “approved unauthorized” and “eligible unauthorized” insurers are changed where appropriate to simply state “surplus lines insurers.”
- 10. Louisiana permits health and accident insurance to be written on a surplus lines basis.

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